

without the need for Court intervention. However, Plaintiff does not oppose an order setting a firm date if the Court deems such appropriate. (Washington Decl., ¶¶3-10.)

14. *Wylie v. New Rez LLC, et al*, Case No. CIVSB2513110
Defendant's Demurrer to Second Amended Complaint
6/3/26, 9:00 a.m., Dept. S-17

The Court would **SUSTAIN** this unopposed demurrer to the Second Amended Complaint (SAC). Plaintiff will have thirty (30) days leave to amend. The Court will hear argument on whether leave to amend is appropriate.

In this case, the Plaintiff – who is proceeding *pro per* – filed this instant action originally on May 19, 2025, alleging non-compliance with California's foreclosure law. She then filed a First Amended Complaint (FAC) on July 16, 2025. It was subject to a sustained demurrer on November 14, 2024. She filed the operative SAC on December 15, 2025. Defendant filed this instant demurrer shortly thereafter. The Court agrees with Defendant's assessment that the SAC does not set forth sufficient factual allegations. The SAC is, on its face, uncertain as it fails to clearly set forth *any* causes of action.

21. *Orozco Cortez v. Landa Vasquez*, Case No. CIVSB2201776
Motion to Dismiss
6/3/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

The Court would, first, take judicial notice of the Plaintiff's Chapter 7 bankruptcy documents as presented, including those establishing discharge. (Exhs. 1-8.) Thus, Plaintiff sets forth uncontested evidence. Here the bankruptcy Discharge Order advised the Plaintiff he could not collect on discharged debts. (Exh. 7 ["Creditors cannot collect discharged debts."]; see also 11 USC § 524.)
